

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cloey Romans	Team: Squad #07	CCRB Case #: 202301642	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 02/26/2023 1:58 AM	Location of Incident: Broadway and Weirfield Street	18 Mo. SOL 8/26/2024	Precinct: 83		
Date/Time CV Reported Sun, 02/26/2023 4:05 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 02/26/2023 4:05 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Matthew Arvelo	01139	954505	083 PCT
2. PO Kieran Ross	02868	967310	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Matthew Varela	16583	964329	INT FIO PRG

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Matthew Arvelo	Abuse: Sergeant Matthew Arvelo stopped § 87(2)(b)	A . Substantiated
B . SGT Matthew Arvelo	Force: Sergeant Matthew Arvelo used physical force against § 87(2)(b)	B . Substantiated
C . SGT Matthew Arvelo	Abuse: Sergeant Matthew Arvelo issued an unlawful summons to § 87(2)(b)	C . Substantiated
D . SGT Matthew Arvelo	Discourtesy: Sergeant Matthew Arvelo spoke discourteously to § 87(2)(b)	D . Within NYPD Guidelines
E . SGT Matthew Arvelo	Force: Sergeant Matthew Arvelo used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . SGT Matthew Arvelo	Force: Sergeant Matthew Arvelo used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . SGT Matthew Arvelo	Abuse: Sergeant Matthew Arvelo improperly used his body-worn camera.	G . Substantiated
H . PO Kieran Ross	Discourtesy: Police Officer Kieran Ross spoke discourteously to § 87(2)(b)	H . Substantiated

Case Summary

On February 26, 2023, § 87(2)(b) filed this complaint with the CCRB via their Online Website.

At approximately 1:58 a.m. on February 26, 2023, § 87(2)(b) was walking to the subway with his friends § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b). Near the intersection of Broadway and Weirfield Street, Brooklyn, an unmarked police vehicle pulled in front of § 87(2)(b) and his friends. Sergeant Matthew Arvelo and Police Officer Kieran Ross of the 83rd Precinct and Police Officer Matthew Varela of Field Intelligence exited the vehicle. Sgt. Arvelo stopped § 87(2)(b) (**Allegation A: Abuse of Authority – Substantiated**) and pulled him to the ground (**Allegation B: Force – Substantiated**). Sgt. Arvelo directed PO Ross to place § 87(2)(b) under arrest for Disorderly Conduct (**Allegation C: Abuse of Authority – Substantiated**). While § 87(2)(b) was being placed into handcuffs by PO Ross and PO Varela, Sgt. Arvelo told § 87(2)(b) “I don’t give a fuck either” and “back the fuck up” (**Allegation D: Discourtesy – Within NYPD Guidelines**) then pushed § 87(2)(b) and § 87(2)(b) (**Allegations E and F: Force – Within NYPD Guidelines**). Sgt. Arvelo did not activate his BWC in accordance with NYPD procedure (**Allegation G: Abuse of Authority – Substantiated**). § 87(2)(b) was then placed into the police vehicle where PO Ross told § 87(2)(b) he was being arrested because of how he “fucking acts” (**Allegation H: Discourtesy – Substantiated**). § 87(2)(b) was released from the 83rd Precinct stationhouse with two summonses, one for Criminal Possession of a Weapon and one for Disorderly Conduct. No additional arrests or summons were issued.

Six Body-worn Camera (BWC) videos were yielded (Board Review 01 through 06). Two dash camera videos were yielded (Board Review 07 and 08). Surveillance footage was obtained from Borhan Food Market Corp. located at 1559 Broadway, Brooklyn (Board Review 09). A cell phone video was recorded by § 87(2)(b) and obtained from § 87(2)(b) (Board Review 10).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Matthew Arvelo stopped § 87(2)(b)

Allegation (B) Force: Sergeant Matthew Arvelo used physical force against § 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Matthew Arvelo issued an unlawful summons to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) provided consistent testimony that they had left a concert near Wilson Avenue and Cornelia Street, Brooklyn, and were walking to the Halsey Street J-train subway station with their friends § 87(2)(b) and § 87(2)(b). The group was walking southeast on Broadway when they observed an unmarked police vehicle turn onto Wierfield Street, which was directly in front of them, cutting the group off from walking. Prior to this, neither § 87(2)(b) nor § 87(2)(b) had recalled seeing any police presence in their 15-minute walk to this location from the concert. There were no lights or sirens activated on the vehicle and no commands were made on the loudspeaker. As soon as the vehicle stopped, Sgt. Arvelo, PO Varela, and PO Ross exited and approached the group. Sgt. Arvelo asked § 87(2)(b) “Where are you going?” and § 87(2)(b) replied, “Home.” Sgt. Arvelo then grabbed § 87(2)(b) arms but did not say anything further. No officer made physical contact with any of § 87(2)(b) friends, and it appeared only § 87(2)(b) was being stopped as the three officers encircled him and cut him off from his friends. At the time, § 87(2)(b) was wearing a black Moncler puffer jacket and both his hands had been inside his front exterior pockets while he was walking because of the cold weather. § 87(2)(b) had a 5 inch by 2 inch Bluetooth speaker in an

interior jacket pocket near his chest. Sgt. Arvelo did not ask § 87(2)(b) to remove his hands from his pockets, nor did PO Ross or PO Varela. Instead, Sgt. Arvelo immediately grabbed § 87(2)(b) arm and pulled him down to the ground without saying anything. PO Ross and PO Varela were holding § 87(2)(b) other arm when Sgt. Arvelo did this, which caused all three officers to also fall to the ground and land on top of or near § 87(2)(b). The way Sgt. Arvelo pulled § 87(2)(b) onto the ground caused § 87(2)(b) face to first make contact with the ground. § 87(2)(b) hands were inside his pockets when he was pulled to the ground and because the pockets of the jacket are small, § 87(2)(b) hands were stuck inside. Sgt. Arvelo pulled § 87(2)(b) hands out of his pockets forcibly by tugging hard on each of them. Sgt. Arvelo, PO Ross, and PO Varela then placed § 87(2)(b) into handcuffs. § 87(2)(b) was not told why he was being stopped or why he was being placed into handcuffs. Once § 87(2)(b) was in handcuffs, § 87(2)(b) was brought into a standing position by the officers. § 87(2)(b) was still not told why he was being arrested. PO Ross and Sgt. Arvelo frisked § 87(2)(b) touching the exterior of his jacket. Sgt. Arvelo reached into § 87(2)(b) upper interior jacket pocket, near his chest, and removed the Bluetooth speaker which was inside. Sgt. Arvelo said, "It's just a speaker." § 87(2)(b) was then placed into a police vehicle and removed to the 83rd Precinct where he was released approximately two hours later with two summonses, one for Disorderly Conduct and one for Criminal Possession of a Weapon regarding a knife which was found after he was arrested (Board Review 11, 12, and 13).

§ 87(2)(b) and § 87(2)(b) did not provide statements.

PO Varela, PO Ross, and Sgt. Arvelo provided consistent testimony that they were inside their police vehicle, driving northwest on Broadway when they observed § 87(2)(b) and § 87(2)(b) walking in the opposite direction on Broadway, toward the officers. Before this, the officers had no familiarity with any individual in the group. PO Varela, PO Ross, and Sgt. Arvelo were on routine patrol and were not in the vicinity for any specific jobs, nor did they have any knowledge of any weapon or violent offenses in the area that evening. As the police vehicle approached the group, Sgt. Arvelo stated that § 87(2)(b) began to separate himself and walk ahead. While walking ahead, § 87(2)(b) clutched his left jacket pocket and turned his body toward a wall to the left of him. Sgt. Arvelo described this action as "not the normal way someone would put their hand in their jacket, and it looked like how someone would hold the handle of a firearm." Sgt. Arvelo stated that § 87(2)(b) left jacket pocket, which his hand was inside, "seemed a lot heavier" than his right jacket pocket. Because of this, Sgt. Arvelo believed § 87(2)(b) had a firearm in his left pocket. Sgt. Arvelo did not recall if he observed any bulges in § 87(2)(b) pocket and stated his belief that § 87(2)(b) was armed was based on the weight of the pocket and the way § 87(2)(b) hand was positioned inside the pocket, in addition to § 87(2)(b) initially turning his body toward the wall. Sgt. Arvelo directed PO Ross to make a U-turn in the vehicle and stop § 87(2)(b) based on suspicion of a firearm. The police vehicle drove past the group, made a U-turn, then turned onto Wierfield Street cutting the group off before they could continue walking. No turret lights, sirens, or commands on the loudspeaker were made. The vehicle stopped in front of § 87(2)(b) and his friends, and the officers immediately exited. Sgt. Arvelo approached § 87(2)(b) and told him, "Take your hands out of your pockets." Sgt. Arvelo stated that § 87(2)(b) did not have the right to refuse to remove his hands because "we were already at a Level III Terry Stop" based on the suspicion of a firearm. § 87(2)(b) did not immediately respond to the directive and did not remove his hands from his pockets. Sgt. Arvelo then grabbed § 87(2)(b) left wrist and began pulling on it to remove it from § 87(2)(b) pocket. From the time Sgt. Arvelo first directed § 87(2)(b) to remove his hands from his pockets, until the moment he grabbed § 87(2)(b) wrist, Sgt. Arvelo estimated "two seconds" elapsed. § 87(2)(b) pulled his body away from Sgt. Arvelo when Sgt. Arvelo grabbed his wrist. § 87(2)(b) was not saying anything during this time but

was not removing his hands. Sgt. Arvelo did not tell § 87(2)(b) why he was being stopped and did not tell § 87(2)(b) why he needed to remove his hands from his pockets. Sgt. Arvelo continued attempting to pull § 87(2)(b) hands out of his pockets, ultimately pulling § 87(2)(b) to the ground by pulling on his arm downward. Sgt. Arvelo stated a ‘tussle’ ensued while on the ground and trying to remove § 87(2)(b) hands, though Sgt. Arvelo was unable to further describe specifically what this looked like. Once § 87(2)(b) was on the ground, Sgt. Arvelo, PO Ross, and PO Varela pulled § 87(2)(b) hands out of his pockets and placed him into handcuffs. Sgt. Arvelo did not recall who placed § 87(2)(b) into handcuffs but that the officers did so because § 87(2)(b) was determined to be under arrest for Disorderly Conduct. Sgt. Arvelo stated that § 87(2)(b) was considered disorderly because he was “fighting with us on the ground while we were trying to take his hands out of his pockets.” Sgt. Arvelo stated that § 87(2)(b) actions constituted Disorderly Conduct because of his ‘violent’ behavior. Sgt. Arvelo described this ‘violent’ behavior as ‘fighting with us on the ground and not removing his hands from his pockets.’ Sgt. Arvelo described ‘fighting with us’ as ‘tensing up’ and refusing to give his hands; § 87(2)(b) did not exhibit any active physical aggression. Sgt. Arvelo stated a ‘group gathered’ during this struggle. Sgt. Arvelo could not recall if any pedestrians or civilians were present beyond § 87(2)(b) friends who were originally with him and did not know if ‘the group’ that gathered was anyone beyond § 87(2)(b) friends who were already there. The summonses were prepared by PO Ross, though Sgt. Arvelo stated he authorized the summonses. During his statement, PO Ross confirmed he wrote § 87(2)(b) two summons upon the directive of Sgt. Arvelo (Board Review 14, 15, and 16).

PO Ross’ BWC video begins as he exits the driver’s seat of the police vehicle and immediately approaches § 87(2)(b) who is being pushed backward by Sgt. Arvelo (beginning at the 00:55 time stamp). § 87(2)(b) has both hands in his exterior jacket pockets and is being pushed backward by Sgt. Arvelo, who has his hands around § 87(2)(b) wrists. While Sgt. Arvelo is pushing § 87(2)(b) backward, § 87(2)(b) trips while walking backward and falls on his butt with his hands still in his pockets. When audio begins at the 00:59 time stamp, § 87(2)(b) can be heard saying, “Yo, what are ya’ll doing?” PO Ross says, “Take your hands out of your pockets” and begins pulling on § 87(2)(b) hands along with Sgt. Arvelo. This order is repeated multiple times and § 87(2)(b) responds, “Ya’ll got no probable cause. Ya’ll got no probable cause.” § 87(2)(b) is returned to a standing position while PO Ross and Sgt. Arvelo continues attempting to pull § 87(2)(b) hands out of his pockets. At the 01:10 time stamp, Sgt. Arvelo can be seen pulling § 87(2)(b) right arm with force and pulling him onto the ground. § 87(2)(b) lands face down, while Sgt. Arvelo, PO Ross, and PO Varela surround him. At the 01:15 time stamp, PO Varela says, “He’s got a knife” and PO Ross responds, “Yo, if it’s a knife, just chill. If it’s a knife, just chill out.” Sgt. Arvelo directs PO Varela and PO Ross to “put cuffs on him” and PO Ross places § 87(2)(b) into handcuffs. § 87(2)(b) friends can be heard in the background yelling, “What’s your probable cause, bro?” and Sgt. Arvelo responds, “How he was acting.” PO Ross says, “Yo, it’s knife? That’s what it is?” (beginning at the 01:36 time stamp), while PO Ross and PO Varela turn § 87(2)(b) onto his back so he is facing the officers. In PO Varela’s BWC video, this moment is captured beginning at the 01:18 time stamp. PO Varela reaches inside § 87(2)(b) interior jacket pocket to reveal a Bluetooth speaker, which is loudly emanating music (at the 01:37 time stamp). The pocket in which the speaker is stored is an interior pocket on § 87(2)(b) left chest. § 87(2)(b) is placed into the police vehicle and removed from the scene. It is not captured on any BWC video where the knife was recovered from on § 87(2)(b) person during the struggle, though at the 01:04 time stamp in PO Varela’s BWC video, Sgt. Arvelo can be seen holding the knife while § 87(2)(b) is being handcuffed (Board Review 03 and 06). PO Ross’ BWC video captures him approaching § 87(2)(b) and Sgt. Arvelo immediately as Sgt. Arvelo is beginning to stop § 87(2)(b) and push him backward (beginning at 00:55 time stamp). Four additional civilians can be seen walking near § 87(2)(b) all of which appear to be his

friends. In no BWC video is any group beyond these four individuals captured. At the 01:32 time stamp, while § 87(2)(b) is already being placed into handcuffs, Sgt. Arvelo can be seen standing and approaching § 87(2)(b) friends. Sgt. Arvelo tells the group to “back up” while § 87(2)(b) is on the ground and in handcuffs. § 87(2)(b) is not captured physically resisting at any point in any BWC video, only declining to remove his hands from his pockets when requested (Board Review 03).

Surveillance video obtained from Borhan Food Market Corp., located at Weirfield Street and Broadway, captures Sgt. Arvelo, PO Ross, and PO Varela’s vehicle stop on Weirfield Street, and Sgt. Arvelo and PO Varela immediately exit the passenger side of the vehicle (beginning at 00:00 time stamp). § 87(2)(b) and his friends can be seen walking towards the vehicle, on southbound on Broadway. Sgt. Arvelo and PO Varela approach the group, but the initial contact occurs out of the frame and is not captured on the surveillance footage. At the 00:12 time stamp, Sgt. Arvelo reappears on the scene while he is pulling § 87(2)(b) toward the sidewalk and then onto the ground. Once § 87(2)(b) is on the ground, PO Ross and PO Varela approach. It is not visible what the officers are doing while § 87(2)(b) is on the ground, as § 87(2)(b) body is obstructed from view by the police vehicle. The officers bring § 87(2)(b) back into a standing position for approximately six seconds while Sgt. Arvelo continues to pull on § 87(2)(b) right arm, which is in his jacket pocket. At the 00:25 time stamp, Sgt. Arvelo pulls on § 87(2)(b) right arm twice, pulling him onto the ground where PO Ross and PO Varela follow. All three officers landing on top of or near § 87(2)(b) on the ground. What specifically occurs once on the ground is not captured on the surveillance footage as once again the group is obstructed by the police vehicle (Board Review 09).

Cell phone video captured by § 87(2)(b) begins as Sgt. Arvelo, PO Ross, and PO Varela are grabbing § 87(2)(b) hands, which are inside his jacket pockets. Sgt. Arvelo pulls § 87(2)(b) to the ground by grabbing his right elbow and pulling backward, bringing § 87(2)(b) over the curb to fall over, resulting in § 87(2)(b) landing facedown with Sgt. Arvelo, PO Ross, and PO Varela on top of and surrounding him. Once on the ground, the officers immediately place § 87(2)(b) into handcuffs (Board Review 10).

§ 87(2)(b) received two summonses, one for Criminal Possession of a Weapon (knife) and one for Disorderly Conduct. On the Disorderly Conduct summons, there is no subsection listed. Both summonses were prepared by and entered by PO Ross (Board Review 17 and 18). The narrative portion of the Disorderly Conduct summons states, “At TPO deft did act in a violent manner causing a crowd to form.”

NYPD Patrol Guide 212-11 finds that when a person’s freedom of movement is restricted and they are temporarily detained, is it categorized as a Level III encounter, or a Terry Stop. Such enforcement must be rooted in reasonable suspicion that the person has committed, is committing or is about to commit a felony or Penal Law misdemeanor, at which point the member of service may stop and detain for the purpose of conducting a criminal investigation. Reasonable suspicion exists when the information known to the member of the service would make an ordinarily prudent and cautious police officer under the circumstances believe that a felony or Penal Law misdemeanor has been, is being or is about to be committed. The officer must have a particularized and objective basis for suspecting the person stopped of the criminal conduct. The officer must be able to articulate specific facts establishing justification for the stop; hunches or gut feelings are not sufficient (Board Review 20). Patrol Guide 212-11 derives its legal precedent from People v. De Bour, 40 N.Y.2d 210, which finds that the statutory right of a Level III stop is to temporarily detain for questioning and the authority to frisk is a corollary if the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed (Board Review 21).

NYPD Patrol Guide 221-01 details the use of force by stating that officers will use only the reasonable force necessary to gain control or custody of a subject. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department policy. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. All members of service at a police incident must prioritize de-escalation, whenever possible. In determining proportionality, members of service should consider; The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which, would affect pain tolerance or increase the likelihood of violence (Board Review 22).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be **Substantiated**.

§ 87(2)(g) Sgt. Arvelo began the stop by immediately physically engaging with § 87(2)(b) by pushing him backward and attempting to forcibly remove his hands from his pockets, both of which occurred within 'two seconds' of first asking § 87(2)(b) to voluntarily remove his hands. § 87(2)(g)

Therefore, it is recommended that **Allegation B** be **Substantiated**.

New York State Penal Law § 240.20 finds that a person is guilty of Disorderly Conduct if they intentionally cause public inconvenience, annoyance, or alarm, or recklessly create a risk in a public place by: engaging in fighting or violent, tumultuous or threatening behavior; or makes unreasonable noise; or uses abusive or obscene language, or makes an obscene gesture; or disturbs any lawful assembly or meeting of persons; or obstructs vehicular or pedestrian traffic; or congregates with other person in a public place and refuses to comply with a lawful order of the police to disperse; or creates a hazardous or physically offensive condition by an act which service no legitimate purpose. Article 240 is designed to proscribe only that type of conduct which has a real tendency to provoke public disorder (Board Review 23).

§ 87(2)(g)

§ 87(2)(g) The summons does not list a subsection specifying what section of disorderly conduct § 87(2)(b) was committing by doing so. § 87(2)(b) was walking down the street with a group of friends; § 87(2)(g)

Therefore, it is recommended that **Allegation C** be **Substantiated**.

Allegation (D) Discourtesy: Sergeant Matthew Arvelo spoke discourteously to § 87(2)(b)

Allegation (E) Force: Sergeant Matthew Arvelo used physical force against § 87(2)(b)

Allegation (F) Force: Sergeant Matthew Arvelo used physical force against § 87(2)(b)

Allegation (G) Abuse of Authority: Sergeant Matthew Arvelo improperly used his body-worn camera.

§ 87(2)(b) and § 87(2)(b) stated that while § 87(2)(b) was on the ground and being placed into handcuffs, they were recording the incident on their cellphones. § 87(2)(b) and § 87(2)(b) were standing several feet away but close enough to capture the incident. Sgt. Arvelo stood up, approached § 87(2)(b) and § 87(2)(b) then told them to back up. § 87(2)(b) and § 87(2)(b) complied but continued recording on their cell phones. Sgt. Arvelo then said, “Back the fuck up” and pushed § 87(2)(b) and § 87(2)(b) each once, placing his hands flat on their chests and pushing backwards. Sgt. Arvelo then returned to § 87(2)(b) PO Ross, and PO Varela to finish effecting the arrest (Board Review 11, 12, and 13).

Sgt. Arvelo stated that § 87(2)(b) friends were standing in a group watching § 87(2)(b) arrest and that they were recording on their cell phones. Sgt. Arvelo described the group as “hostile and chaotic” but was unable to recall what the group was saying or doing beyond recording. The group was not suspected of any criminality and was free to leave. Sgt. Arvelo stated he told the group to ‘back up,’ but he did not recall if he said, “back the fuck up.” Sgt. Arvelo was shown his BWC video. Sgt. Arvelo confirmed he said, “Back up the fuck up” and stated he did so because “the group was being hostile” and “would not back up.” Sgt. Arvelo was shown a cell phone video, linked in IA #21 of the case file. Sgt. Arvelo confirmed he observed himself push § 87(2)(b) friends backward and stated it was to get the group to back up (Board Review 16).

Sgt. Arvelo’s BWC video begins after he had concluded interacting with § 87(2)(b) and § 87(2)(b) (Board Review 01).

At the 00:49 time stamp, surveillance footage captures Sgt. Arvelo approach § 87(2)(b) friends who are standing nearby and recording § 87(2)(b) arrest. As Sgt. Arvelo walks toward the group, and they each take a step backward. Sgt. Arvelo appears to say something to the group, but the video does not contain audio. At the 00:52 time stamp, Sgt. Arvelo pushes one individual from the group and at the 00:56 time stamp, pushes a second individual backward. The group distances itself from Sgt. Arvelo but appear to continue speaking with him. At the 01:13 time stamp, Sgt. Arvelo bends down and picks up his BWC, then places it on his chest. § 87(2)(b) is brought to a standing position by PO Ross and PO Varela, then Sgt. Arvelo approaches them. § 87(2)(b) friend walks towards the officers and continue recording their cell phone videos. At the 01:48 time stamp, Sgt. Arvelo walks toward § 87(2)(b) friends, and they take several steps backward, who have now distanced themselves from PO Ross, PO Varela, and § 87(2)(b) is then placed into the rear seat of the police vehicle and removed from the location (Board Review 09).

In a cell phone video captured by § 87(2)(b) after § 87(2)(b) is placed into handcuffs and still

on the ground, Sgt. Arvelo stands up and tells § 87(2)(b) “Back up” (beginning at the 00:21 time stamp). Prior to this, § 87(2)(b) had been recording at approximately a five foot distance from § 87(2)(b) and the officers. Sgt. Arvelo walks toward § 87(2)(b) and § 87(2)(b) says, “Don’t back up nothing. Nigga don’t touch me. Don’t touch me nigga.” § 87(2)(b) appears to step backward six inches. § 87(2)(b) is handcuffed and being searched by PO Ross and PO Varela in the background. Sgt. Arvelo responds, “All of ya’ll back up” and pushes § 87(2)(b) backward, then pushes § 87(2)(b) backward. Sgt. Arvelo repeats, “Back up” as he pushes § 87(2)(b) and § 87(2)(b) responds, “Don’t touch me, bro. The fuck are you talking about?” Sgt. Arvelo approaches § 87(2)(b) again and then pushes him a second time, saying again, “Nah, nah, nah. Back up.” § 87(2)(b) says again, “Don’t touch me nigga, stop touching me nigga. Don’t touch me. No probable cause like I said. These niggas is bugging out. No cameras or nothing. Yo. Stopping touching niggas, bro.” Sgt. Arvelo picks his BWC up off the ground and places it back on his chest, then activates it. § 87(2)(b) keeps repeating, “Lawsuit, dickhead” multiple times but does not physically approach the officers. PO Ross is seen searching § 87(2)(b) while he is in handcuffs (at the 01:09 time stamp). § 87(2)(b) says, “I would like to see ya’lls names and badges” then zooms in on PO Ross’ name and badge. Sgt. Arvelo approaches § 87(2)(b) again and says, “Back up bro, back up.” § 87(2)(b) responds, “Don’t touch me, bro. I’m asking a question.” Sgt. Arvelo again says, “Back up, back up” as he approaches § 87(2)(b) responds, “I don’t give a fuck” and Sgt. Arvelo says, “I don’t give a fuck either. Back the fuck up” (at the 01:24 time stamp). § 87(2)(b) says, “The fuck are you talking about” and Sgt. Arvelo walks away, reapproaching § 87(2)(b) PO Ross, and PO Varela as § 87(2)(b) continues yelling at Sgt. Arvelo. The officers place § 87(2)(b) into the back of the police vehicle and leave the location without further interaction with § 87(2)(b) or § 87(2)(b) (Board Review 10).

NYPD Patrol Guide Procedure 200-02 states that members of service are instructed to treat citizens with courtesy and professionalism, and that one of the primary values of the NYPD is to respect the dignity of individuals and provide police services with civility and courtesy. NYPD Administrative Code 304-06 details members of service’s prohibited conduct while on duty and expressly forbids officers from using discourteous language or making disrespectful remarks (Board Review 24 and 25). DAO DCT Case #2015-15012 PD v. Pichardo finds that officers may use limited profanity to gain control of a dynamic situation. Officers may not use profanity when it is intended to insult or belittle (Board Review 33).

It is undisputed that Sgt. Arvelo told § 87(2)(b) and § 87(2)(b) to “back the fuck up” and pushed them both backward while doing so. BWC and surveillance video illustrate that Sgt. Arvelo took these actions after § 87(2)(b) had been secured in handcuffs and his friends were attempting to video record the incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations D, E, and F** be closed as **Within NYPD Guidelines**.

Sgt. Arvelo stated that while § 87(2)(b) was being taken to the police vehicle by PO Ross and PO Varela, he went to pick up his BWC camera off the ground where it had fallen off during the physical struggle with § 87(2)(b). Sgt. Arvelo placed the BWC back onto his chest and activated it. Sgt. Arvelo did not attempt to activate his camera at any time before this moment. Sgt.

Arvelo stated he did not activate his BWC earlier because he was “so focused” on § 87(2)(b) and because he “thought § 87(2)(b) had a gun (Board Review 16).

Sgt. Arvelo’s BWC video begins at internal time stamp 1:50:52 a.m., which includes a pre-activation one-minute window. Sgt. Arvelo activates his BWC at the 00:59 time stamp, while he is speaking with § 87(2)(b) and § 87(2)(b) and § 87(2)(b) is already being escorted to the police vehicle. The stop, take down, and handcuffing of § 87(2)(b) has concluded by the time that Sgt. Arvelo activates his BWC (Board Review 01).

NYPD Patrol Guide 212-123 finds that an officer is required to activate their BWC prior to engaging in any police action. The Patrol Guide defines police action as any police service, as well as law enforcement or investigative activity conducted in furtherance of official duties. This includes any self-initiated investigative or enforcement actions (Board Review 19).

§ 87(2)(g)
[REDACTED]

Therefore, it is recommended that **Allegation G** be **Substantiated**.

Allegation (H) Discourtesy: Police Officer Kieran Ross spoke discourteously to § 87(2)(b)

After § 87(2)(b) is placed into the rear set of the police vehicle for transport to the 83rd Precinct stationhouse, Sgt. Arvelo’s BWC captures § 87(2)(b) ask officers, “I don’t know why ya’ll jumping out on me” (beginning at the 03:08 time stamp). PO Ross responds, “It doesn’t matter” and § 87(2)(b) says, “I have PTSD with police, bro.” PO Ross replies, “You want to know why? Because of how you fucking act” (Board Review 01).

PO Ross initially did not recall telling § 87(2)(b) “Because of how you fucking act.” PO Ross was shown Sgt. Arvelo’s BWC video that captures the discourtesy. PO Ross confirmed that he heard himself say in the video, “Because of how you fucking act.” PO Ross stated that when he made this remark, he used the word “fucking” as an adjective and that it was not directed at § 87(2)(b). Additionally, PO Ross stated a ‘high stress’ situation had just concluded, referring to § 87(2)(b) arrest (Board Review 15).

NYPD Patrol Guide Procedure 200-02 states that members of service are instructed to treat citizens with courtesy and professionalism, and that one of the primary values of the NYPD is to respect the dignity of individuals and provide police services with civility and courtesy. NYPD Administrative Code 304-06 details members of service’s prohibited conduct while on duty and expressly forbids officers from using discourteous language or making disrespectful remarks (Board Review 24 and 25). In DAO DCT Case #2015-15012 PD v. Pichardo finds that officers may use limited profanity

to gain control of a dynamic situation. Officers may not use profanity when it is intended to insult or belittle (Board Review 33).

It is unrefuted that PO Ross told § 87(2)(b) that he was being arrested because of how he “fucking acts.” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation H** be **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 26).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 27).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 28).
- PO Matthew Varela has been a member-of-service for five years and this is the first CCRB complaint to which PO Varela has been a subject.
- PO Kieran Ross has been a member of service for four years and has been a subject in three CCRB complaints and 16 allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Matthew Arvelo has been a member of service for nine years and has been a subject in six CCRB complaints and 21 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 11, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 29).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- The RPBP Unit reviewed this complaint and ultimately decided it did not contain actionable allegations of Racial Profiling or Bias-Based Policing.

Squad: 7

Investigator: Cloey Romans Inv. Cloey Romans July 5, 2023
Signature Print Title & Name Date

Squad Leader: _____

Signature _____ Print Title & Name _____ Date _____

Manager Vanessa Rosen July 5, 2023

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____